

Scenario 3: Hybrid Multi-Issue Output

STATUS: HYBRID RAG MULTI-ISSUE (SCORE 70%-89%)

SCENARIO 3: HYBRID MULTI-ISSUE

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SECTION 1: Title & Header

BEFORE THE PROPER OFFICER, GOODS AND SERVICES TAX DEPARTMENT
REPLY TO SHOW CAUSE NOTICE / INTIMATION

SECTION 2: Jurisdiction & Forum

To: Proper Officer, Ward 10
Jurisdiction: Maharashtra

SECTION 3: Taxpayer Details

Taxpayer Name: Logistics India Ltd
GSTIN: 27LLLLM4321P1Z2
PAN: AAACA1234A

SECTION 4: Notice Reference & Subject

Ref Notice No: DET/2026/404 | DIN/RFN: DIN-2026-99

SECTION 5: Statement of Facts

The Taxpayer respectfully submits the factual background of the matter for Financial Year 2023-24.

SECTION 6: Preliminary Objections

1. The subject notice/intimation is barred by limitation and procedural defects under the GST Law. 2. Absence of proper DIN/RFN invalidates the proceeding per CBIC circulars.

SECTION 7: Substantive Reply & Defense

To, The Learned Proper Officer / State Tax Officer (Mobile Squad / Enforcement) [Designation, Range / Jurisdiction] [Office Address] In the matter of: M/s Noticedesk Technologies Private Limited | GSTIN [] | [Registered Address] Subject: Reply to the detention notice in Form GST MOV-06 and the Show Cause Notice in Form GST MOV-07 under Section 129(3), issued on the allegation of undervaluation of the goods in transit, and request for release of the goods and the conveyance — MOV-07 No. Logistics India Ltd dated Logistics India Ltd. Respected Sir / Madam, Drafting note (to be removed before filing): Particulars in bold square brackets are placeholders. Every case authority and circular is marked [VERIFY] for a final check before filing. The route (Rajasthan to Gujarat), the documents carried (tax invoice, e-way bill, LR), and the ground of detention (alleged undervaluation) are reproduced from the source.

SYNOPSIS The goods and the conveyance were detained, and a notice in Form GST MOV-07 under Section 129(3) was issued, on the sole ground that the value of the goods shown in the tax invoice is allegedly less than their 'market value' — that is, undervaluation. The detention is contrary to law. The goods in transit were accompanied by a valid tax invoice and a valid e-way bill; there was no contravention of the Act or the rules governing the movement of goods. Section 129 is not a charging or valuation provision: the adequacy of the declared value is a matter for assessment under the substantive provisions of the Act and not a ground for detention in transit. The goods and the conveyance are liable to be released.

STATEMENT OF FACTS The consignment. M/s Noticedesk Technologies Private Limited, GSTIN [], supplied goods [name of goods] under Tax Invoice No. Logistics India Ltd dated Logistics India Ltd of value Rs. Logistics India Ltd plus tax (CGST/SGST/IGST as applicable), moved from Rajasthan to Gujarat through M/s Logistics India Ltd Transport (LR No. Logistics India Ltd), conveyance No. Logistics India Ltd. The documents carried. The movement was accompanied by the tax invoice and a valid e-way bill (No. Logistics India Ltd dated Logistics India Ltd) generated under Rule 138; all documents required for the movement were present and in order. The detention. The goods and conveyance were detained and Form GST MOV-06 / MOV-07 issued under Section 129(3), the sole ground being that the value shown was less than the 'market value' (alleged undervaluation).

FOUNDATIONS / SUBMISSIONS Each ground is independently sufficient for release. The Company DENIES any contravention.

Ground 1: Section 129 does not permit detention on the ground of alleged undervaluation. Section 129 applies where goods are transported or stored in transit 'in contravention of the provisions of this Act or the rules.' The provision is concerned with the integrity of the movement — the cover of a valid invoice and e-way bill — and not with the adequacy of the declared value. The valuation of a supply is governed by Section 15 and is a matter for assessment by the jurisdictional officer in due course; it cannot be examined and re-determined by a detaining officer at the roadside. Detention founded solely on a suspicion of undervaluation is without jurisdiction. (Authority). Reliance is placed on the line of High Court authority holding that goods accompanied by a valid invoice and e-way bill cannot be detained under Section 129 on the ground of suspected undervaluation, the remedy lying in assessment — to be cited from the jurisdictional High Court and reporter-verified before filing. [VERIFY]

Ground 2: There was no contravention; valid invoice and e-way bill accompanied the goods. The movement was covered by a valid tax invoice and a valid e-way bill. No discrepancy in the documents, the quantity, or the description of the goods is alleged. Where the documents are in order and the movement is genuine, the foundational requirement of Section 129 — a contravention — is absent.

Ground 3: Detention requires intent to evade tax; mere allegation of undervaluation does not establish it. The detention and penalty machinery of Section 129 is directed at evasion. A bona fide declaration of the transaction value, supported by a genuine invoice, does not evidence any intent to evade tax. Reliance is placed on the principle, recognised by the Hon'ble Supreme Court in Assistant Commissioner (ST) v. Satyam Shivam Papers Pvt. Ltd., 2022 (1) TMI 954 (SC) / [2022] 134 taxmann.com 241 / (2022) 14 SCC 157 (SLP(C) No. 21132 of 2021, order dated 12.01.2022, affirming Telangana HC in W.P. No. 9688 of 2020, dated 02.06.2021) [VERIFY], that detention is not warranted absent a finding of intent to evade tax. The burden of establishing such intent lies on the Department and is not discharged by a bare allegation of undervaluation.

Ground 4: Release of the goods and the conveyance. The goods and the conveyance ought to be released forthwith. Without prejudice, if the officer is of the view that any valuation question survives, that is a matter to be referred to the jurisdictional officer for assessment under Section 15; it is not a ground to continue the detention. The Company is willing to furnish such security as the law permits, under protest, to secure immediate release.

PRAYER The Company most respectfully prays that the Proper Officer be pleased to: **RELEASE** the goods and the conveyance (No. Logistics India Ltd) forthwith, the movement being covered by a valid invoice and e-way bill; **HOLD** that Section 129 does not permit detention on an allegation of undervaluation, the question of value being one for assessment under Section 15; **HOLD** that no intent to evade tax is made out; **DROP** the proceeding under Form GST MOV-07 / Section 129(3) and refrain from any demand of tax or penalty; **GRANT** a personal hearing through the Authorised Representative before any adverse order; and **PASS** such further or other order

as may be just and proper. The Company reserves the right to file additional submissions, to produce further documents, and to present oral arguments at the personal hearing. Nothing herein shall be construed as an admission of any kind. AUTHORITIES AND PROVISIONS RELIED UPON Sections 15, 129 of the CGST Act, 2017; Rule 138 of the CGST Rules, 2017 (e-way bill); Forms GST MOV-06 and MOV-07. Assistant Commissioner (ST) v. Satyam Shivam Papers Pvt. Ltd., Supreme Court, 2022 (1) TMI 954 (SC) / (2022) 14 SCC 157, SLP(C) No. 21132 of 2021, order dated 12.01.2022 (affirming Telangana HC, W.P. No. 9688 of 2020, dated 02.06.2021) (intent to evade). [VERIFY] High Court authority that detention under Section 129 is not warranted on an allegation of undervaluation where documents are in order — to be cited from the jurisdictional High Court and reporter-verified. [VERIFY] For and on behalf of M/s Noticedesk Technologies Private Limited _____ Authorized Signatory / Director Place: Mumbai Date: Logistics India Ltd

SECTION 8: Statutory Provisions & Analysis

Analysis of applicable provisions under Sections 16, 73, 74, 75, 129, and 140 of the Central Goods and Services Tax Act, 2017.

SECTION 9: Precedents & Judicial Decisions

Relied upon binding precedents of the Hon'ble Supreme Court and High Courts regarding natural justice and statutory compliance under GST.

SECTION 10: Documentary Evidence List

• Copy of GSTR-3B & GSTR-1 returns • GSTR-2A/2B Reconciliation Statement • Tax payment receipts (DRC-03)

SECTION 11: Prayer Clause

In light of the above submissions, it is prayed that the proposed proceedings/demand be dropped and proceedings closed.

SECTION 12: Verification & Declaration

I, Authorized Signatory for Logistics India Ltd, do hereby verify that the contents of this reply are true to the best of my knowledge and belief.

SECTION 13: Signature & Representation

For Logistics India Ltd Authorized Signatory / Legal Advocate

SECTION 14: Internal Partner Note

Fast-tracked output compiled from verified GST legal template.

SECTION 15: Client Summary

Formal reply prepared and submitted for filing before the Proper Officer.